

## Tentative Rulings for August 27, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary  
Crystal Marias at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

| CASE #      | CASE NAME                    | HEARING NAME              |
|-------------|------------------------------|---------------------------|
| CVRI2307044 | PLATAS vs GENERAL MOTORS LLC | MOTION FOR ATTORNEYS FEES |

**Tentative Ruling:**

Moving party: Plaintiff Lorraine Platas; represented by Goldsmith West

Responding party: Defendant General Motors, LLC; represented by Erskine Law, APC

Plaintiff Lorraine Platas brings this Song-Beverly action regarding a 2022 GMC Sierra 1500 with defects to the accelerator pedal and check engine light. The complaint, filed 12/4/23, asserts: (1) breach of the implied warranty of merchantability; (2) breach of the implied warranty of fitness; (3) breach of express warranty; (4) failure to promptly repurchase product; (5) failure to commence repairs within a reasonable time; (6) failure to complete repairs within 30 days; (7) failure to maintain sufficient service and repair facilities; (8) failure to make service literature and parts available; (9) negligence; (10) Civil Code § 1796.5.

Plaintiff moves for attorney fees and costs of \$70,868.42 consisting of \$58,085.85 in lodestar, \$5,808.59 in a 1 multiplier, and costs of \$6,973.98. Plaintiff argues that as the prevailing party, she is entitled to recover her fees and costs. She contends the hourly rates and time spent are reasonable. She requests a 1.1 multiplier based on the contingency risk and delay of payment.

In opposition, Defendant contends that the motion is untimely under *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644, since the court automatically dismissed the case on 12/4/25. It argues counsel should not recover time spent on the UCL and conversion claims. It contends the court should reduce counsel's request to fees actually and reasonably incurred, and challenges various entries. It asserts that a multiplier is not warranted. It requests the court award no more than \$27,925 in fees.

In reply, Plaintiff contends the court should consider the policy objectives of Song-Beverly and of Code of Civil Procedure section 998. She argues the motion is not untimely, because Plaintiff filed a notice of conditional settlement, and there is a stipulation for the trial court to decide the attorney fees. She points out the court vacated the dismissal. She repeats that the hourly rates are reasonable, and Defendant has not rebutted the reasonableness of the time spent. She otherwise repeats the arguments from the moving papers.

**Analysis**

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

First, Defendant contends the motion is untimely. The parties dispute whether this motion is untimely pursuant to *Hatlevig v. General Motors* (2026) 118 Cal.App.5th 644. After the plaintiff

notified the court of a settlement, the court set a dismissal within 45 days (i.e. 8/15/23) unless the parties showed good cause why the case should not be dismissed; neither party demonstrated good cause and the court dismissed the action. (*Id.* at 646-647.) The court held that the motion for attorney fees must be served and filed pursuant to Cal. R. Ct., rule 3.1702, which must be served and filed within the time for a notice of appeal, i.e. 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (*Id.* at 649.) “A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees.” (*Id.* at 649.) The court found that the date of notice of dismissal was 8/15/23, and the plaintiff untimely served his motion after the 180 days. (*Id.* at 650.) Here, Defendant errs in the dismissal date. The court dismissed the action on 3/9/26. Accordingly, the motion is timely—even without setting aside the dismissal.

At issue in this motion is the reasonableness of Plaintiff’s request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney’s fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney’s fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Counsel’s lodestar is incorrect. The correct lodestar is as follows:

| <b>Attorney</b>                    | <b>Hourly Rate</b> | <b>Hours</b> | <b>Total</b> |
|------------------------------------|--------------------|--------------|--------------|
| David Goldsmith<br>(attorney)      | \$592.32           | 50.75        | \$29,912.16  |
| Erika Kavicky<br>(attorney)        | \$615.00           | .25          | \$153.75     |
| Issac Agyeman<br>(attorney)        | \$540.82           | 20.5         | \$11,086.81  |
| Phuc Minh (Peter) Le<br>(attorney) | \$437.80           | 31.85        | \$14,600.63  |
| Galyn Bradshaw<br>(paralegal)      | \$200.00           | 5.1          | \$1,020.00   |

|                                             |          |            |                    |
|---------------------------------------------|----------|------------|--------------------|
| Lasha Alvarez<br>(paralegal)                | \$200.00 | 1.2        | \$240.00           |
| Leilani Alexander<br>(paralegal)            | \$150.00 | 1.7        | \$255.00           |
| Elizabeth De Jesus<br>Gutierrez (paralegal) | \$150.00 | .2         | \$30.00            |
| Michelle Karpathy<br>(paralegal)            | \$150.00 | 1.1        | \$165.00           |
| MAS (unknown)                               | \$200.00 | 2.4        | \$480.00           |
| FC (unknown)                                | \$150.00 | .95        | \$142.50           |
| <b>TOTAL</b>                                |          | <b>116</b> | <b>\$58,085.85</b> |

First, counsel provides no information about MAS and FC. Accordingly, there will be no recoupment for those fees.

Second, the hourly rates are excessive. A reasonable rate is \$150 for a paralegal, \$375 for an attorney, \$450 for a senior attorney and \$550 for a partner.

Third, the time spent is excessive. The court reduces the hours as follows:

- Time spent on the demurrer that ultimately was not heard because Plaintiff dismissed. The court reduces DAG's time by 1.1 hours (1/11/24, 2/9/24, 3/25/24, 3/26/24, 3/26/24).
- Paralegal time that was clerical in nature. The court reduces LA's time by .5 (7/5/24, 8/6/24), GB's time by 2.75 (8/11/25, 9/16/25, 9/26/25).
- Trial documents is excessive. The court reduces IA's time by 3.0 hours (9/18/25, 9/27/25)
- Motions in limine time is excessive. The court reduces IA's time by 2.75 (9/24/25, 9/26/25).
- Motions to compel is excessive. The court reduces PL's time by 3.0 (9/24/25, 9/25/25)

| <b>Attorney</b>                    | <b>Hourly Rate</b> | <b>Hours</b> | <b>Total</b> |
|------------------------------------|--------------------|--------------|--------------|
| David Goldsmith<br>(attorney)      | \$550              | 49.65        | \$27,307.50  |
| Erika Kavicky<br>(attorney)        | \$550              | .25          | \$137.50     |
| Issac Agyeman<br>(attorney)        | \$450              | 14.75        | \$6,637.50   |
| Phuc Minh (Peter) Le<br>(attorney) | \$375              | 28.85        | \$10,818.75  |
| Galyn Bradshaw<br>(paralegal)      | \$150              | 2.35         | \$352.50     |
| Lasha Alvarez<br>(paralegal)       | \$150              | .7           | \$105.00     |
| Leilani Alexander<br>(paralegal)   | \$150              | 1.7          | \$255.00     |

|                                          |       |              |                    |
|------------------------------------------|-------|--------------|--------------------|
| Elizabeth De Jesus Gutierrez (paralegal) | \$150 | .2           | \$30.00            |
| Michelle Karpathy (paralegal)            | \$150 | 1.1          | \$165.00           |
| <b>TOTAL</b>                             |       | <b>99.55</b> | <b>\$45,808.75</b> |

The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (*Id.*) The court finds that this was a typical lemon law case with no exceptional quality of representation. No multiplier is awarded.

As for costs, Plaintiff filed a memorandum of costs. Defendant’s remedy was to file a motion to tax costs.

Grant motion and award fees of \$45,808.75. Grant and award all costs in the amount of \$6,973.98.

## 2.

| CASE #      | CASE NAME                                    | HEARING NAME                                                                                                         |
|-------------|----------------------------------------------|----------------------------------------------------------------------------------------------------------------------|
| CVRI2406954 | HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION | MOTION TO COMPEL DEFENDANT RIVERSIDE COUNTY OFFICE OF EDUCATION TO PROVIDE FURTHER RESPONSES TO FORM INTERROGATORIES |

| CASE #      | CASE NAME                                    | HEARING NAME                                                            |
|-------------|----------------------------------------------|-------------------------------------------------------------------------|
| CVRI2406954 | HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION | MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET TWO) |

| CASE #      | CASE NAME                                    | HEARING NAME                                                            |
|-------------|----------------------------------------------|-------------------------------------------------------------------------|
| CVRI2406954 | HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION | MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS (SET ONE) |

### Tentative Ruling:

Moving party: Plaintiff Pertina Hunt  
Responding party: Defendant Riverside County Office of Education

This is an employment dispute. In August 2017, Plaintiff Pertina Hunt (“Plaintiff”) began her employment with Defendant Riverside County Office of Education (“RCOE”) as a Phlebotomy Technician Instructor. (FAC ¶ 11.) In September 2022, Plaintiff transitioned to Medical Assistant Instructor. (*Id.*) From October 2022 through June 2023, Plaintiff was on approved CFRA/FMLA leave following the death of her daughter, during which time Defendant Trisha Jenkins (“Jenkins”) became her supervisor. (*Id.* at ¶ 13(a).) After Plaintiff returned, she requested accommodations for clinically diagnosed anxiety, complained about the lack of ADA accommodations for her students, and complained about a classroom cockroach infestation and racially charged remarks by Jenkins. (*Id.* at ¶ 13(b)-(g).)

On October 3, 2023, Plaintiff received a “conference summary” from Jenkins citing alleged classroom release time violations. (*Id.* at ¶ 13(h).) Approximately three weeks later, on October 24, 2023, Plaintiff was placed on an Employee Improvement Assistance Plan (“EIAP”) citing the same issues as the “conference summary.” (*Id.* at ¶ 13(j).) Plaintiff’s FAC refers to the performance improvement document as a “Performance Improvement Plan” or “PIP.” (FAC ¶ 13(j).) The parties’ motion papers, separate statements, and oppositions refer to the same category of document as an “Employee Improvement Assistance Plan” or “EIAP.” For consistency, the document is referred to as the EIAP throughout this ruling.

On February 1, 2024, Plaintiff submitted a formal rebuttal and internal complaint regarding Jenkins’s conduct. (*Id.* at ¶ 14(a).) On February 27, 2024, Plaintiff was informed her contract would not be renewed. (*Id.* at ¶ 14(e).) Her last day of work was June 30, 2024. (*Id.* at ¶ 15(e).)

Plaintiff filed her original Complaint on December 11, 2024, and her operative First Amended Complaint (“FAC”) on May 28, 2025. The FAC asserts the following nine causes of action against RCOE and Jenkins (collectively, “Defendants”): (1) FEHA discrimination, (2) FEHA hostile work environment harassment, (3) FEHA retaliation, (4) FEHA failure to provide reasonable accommodations, (5) FEHA failure to engage in the interactive process, (6) FEHA failure to prevent discrimination, harassment, or retaliation, (7) whistleblower retaliation under Lab. Code § 1102.5, (8) retaliation for reporting working conditions under Lab. Code § 232.5, and (9) intentional infliction of emotional distress (“IIED”).

On February 24, 2026, Plaintiff propounded Special Interrogatories (“SROGs”), Set Two, Requests for Admission (“RFAs”), Set One, and Form Interrogatories – Employment (“FROGs”), Set Two on RCOE. (Rishwain Decl. ¶ 2, Ex. 1.) After multiple extensions, RCOE served its responses on April 27, 2026. (*Id.* at ¶¶ 3–4.) The three motions now before the Court all arise from the same non-renewal decision and the same performance improvement documentation.

#### Motion to Compel SROG Nos. 32, 41, 52–57

Plaintiff moves to compel further responses to SROG Nos. 32, 41, and 52 through 57. For SROG Nos. 32 and 41 (the performance deficiencies underlying the non-renewal decision and the reasons for the October 24, 2023 EIAP), Plaintiff argues that RCOE’s answers are evasive because they hedge with “including but not limited to” and rely on vague phrases like “multiple professional concerns.” For SROG Nos. 52 through 57, Plaintiff argues that RCOE’s identical boilerplate objections to narrow, time-bounded contention interrogatories about the three-week window between the October 3, 2023 conference summary and the October 24, 2023 EIAP are meritless, because the terms come from RCOE’s own documents, and “assumes facts” and “lacks

foundation” are trial objections improper in written discovery. Plaintiff seeks sanctions of \$3,900.00 against RCOE and its counsel.

RCOE filed only a short memo largely deferring to its separate statement, arguing that the responses are Code-compliant, that RCOE provided supplemental responses on May 27, 2026, and agreed to provide additional further responses during meet and confer, and that Plaintiff is simply unhappy with the content. RCOE seeks sanctions of \$2,030.00 against Plaintiff.

In reply, Plaintiff reiterates that “including but not limited to” is an admission on its face that the list is incomplete, so RCOE must strike the qualifier or identify what else it means. Plaintiff further argues that RCOE’s assertion that it “has not made any contentions in this regard” is a substantive answer buried in boilerplate objections, and if that is its position, it must be stated under oath rather than concealed by an objection. Moreover, Plaintiff contends that RCOE’s silence on the vagueness and overbreadth points leaves her showing unrebutted.

#### Motion to Compel RFA Nos. 9 and 10

Plaintiff moves to compel further responses to RFA No. 9 (admit the February 13, 2024 EIAP was the “operative” plan “in effect” at the non-renewal decision) and RFA No. 10 (admit Plaintiff met all EIAP metrics as of that decision), arguing that RCOE’s vagueness and ambiguity objections and non-responsive narratives are not Code-compliant. Plaintiff seeks sanctions of \$3,250.00 against RCOE and its counsel.

In opposition, RCOE argues that the objections were made in good faith. It contends “operative” and “in effect” are ambiguous because every EIAP version remains relevant and no single plan governs, and “all metrics” is overbroad because it could sweep in the entire California Standards for the Teaching Profession (“CSTP”), which are irrelevant. RCOE further states that it offered to provide further responses if Plaintiff would clarify the meaning of the disputed terms, but Plaintiff declined to do so. It also argues that where a party objects to an entire request there is no remainder left to answer, and that substantial justification defeats sanctions.

In reply, Plaintiff argues that the opposition itself proves the RFAs are intelligible, because RCOE explains what “operative” means and takes the substantive position that all versions remained relevant, and that RCOE’s “pattern and practice of improvement” narrative as to RFA No. 10 is a denial masquerading as an objection. She further argues that “lacks foundation” is a trial objection improper in written discovery, and RCOE cannot claim not to understand “metrics” it created, defined, monitored, and relied upon for the non-renewal decision, and that the “no remainder” shelter applies only where the objection is valid, which these are not.

#### Motion to Compel FROG No. 217.1

Plaintiff moves to compel a further response to FROG No. 217.1 as to RFA Nos. 9 and 10, arguing that RCOE improperly grouped subparts (b) through (d) and did not separately identify supporting facts, knowledgeable persons, documents, and custodians. Plaintiff seeks sanctions of \$3,250.00 against RCOE and its counsel.

RCOE did not file a separate opposition memorandum. It filed only a separate statement, standing on the same vagueness and ambiguity objections underlying RFA Nos. 9 and 10.

With no opposition memorandum, Plaintiff argues that the motion is effectively un rebutted. In any event, FROG No. 217.1 requires separate, request-by-request disclosure of facts, witnesses, documents, and custodians, and grouping “(b) through (d)” while repeating the RFA response is nonresponsive. Plaintiff asserts that an objection to the underlying RFA does not excuse compliance with FROG No. 217.1 for non-admissions, and RCOE’s own RFA No. 10 response recites substantive factual positions (the “pattern and practice of improvement” theory), so it cannot simultaneously claim nothing to disclose.

### **Meet and Confer**

A motion to compel further responses to FROGs and SROGs must be accompanied by a meet and confer declaration under CCP § 2016.040. (CCP § 2030.300(b)(1).) The same requirement applies to a motion to compel further responses to RFAs. (CCP § 2033.290(b)(1).) A compliant declaration must state facts showing “a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (CCP § 2016.040.)

The record here reflects a written meet and confer only. Plaintiff’s counsel sent a May 14, 2026 letter identifying each deficient response across SROGs, FROGs, and RFAs, and requesting supplementation. (Rishwain Decl. ¶¶ 4, 5, Ex. 3.) RCOE responded by letter on May 27, 2026 declining to supplement. (*Id.* at ¶ 6.) Plaintiff followed up in writing on May 29, 2026. (*Id.* at ¶ 7.) RCOE confirmed impasse in a June 3, 2026 email stating that Defendant will not supplement the discovery at issue. (*Id.* at ¶ 5, Ex. 3.) The record does not reflect any in person meeting, telephone call, or videoconference on the disputed responses. Plaintiff therefore did not fully satisfy the meet and confer requirement. Notwithstanding this deficiency, the Court will decide the matter on the merits.

### **Analysis**

#### **1. Special Interrogatories (Set Two), Nos. 32, 41, 52–57**

Each answer to an interrogatory must be as complete and straightforward as the information reasonably available to the responding party permits, and if an interrogatory cannot be answered completely it must be answered to the extent possible. (CCP §§ 2030.220(a), (b).) On receipt of interrogatory responses, the propounding party may move to compel a further response where an answer is evasive or incomplete or where an objection is without merit or too general. (CCP §§ 2030.300(a)(1), (3).) The burden lies with the responding party to justify any objection or failure to answer, and a party may not deliberately misconstrue a question in order to supply an evasive answer. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 788.) A responding party who interposes objections that are unreasonable, evasive, or lacking in legal merit is subject to monetary sanctions. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1281, 1284; CCP §§ 2023.010(e), (f), 2023.030(a).)

Plaintiff moves to compel further responses to SROG Nos. 32, 41, and 52 through 57. SROG No. 32 asks RCOE to identify with specificity the performance deficiencies it contends were the reasons for non-renewal of Plaintiff’s contract. SROG No. 41 asks RCOE to state all reasons Plaintiff was placed on the October 24, 2023 EIAP. SROG Nos. 52 through 57 ask RCOE



to identify instances of specific alleged performance deficiencies during the three-week period between the October 3, 2023 conference summary and the October 24, 2023 EIAP.

a. SROG Nos. 32 and 41 (“including but not limited to”)

RCOE answered both interrogatories by listing purported performance deficiencies, each list prefaced with the phrase “including but not limited to.” (Pl.’s Separate Statement [SROG] pp. 3, 6.) A response that identifies a subset of information while signaling on its face that additional information exists is not “complete and straightforward” within the meaning of CCP § 2030.220(a). (CCP § 2030.220(a).) Either the listed items are the totality of the reasons for non-renewal and the EIAP, in which case the hedge must be removed, or they are not, in which case the remaining reasons must be identified. RCOE cannot preserve the option to add reasons later while representing that its answer is as complete as reasonably available information permits.

Several of the listed items are themselves conclusory. RCOE states, for example, that “multiple professional concerns were communicated to the plaintiff and resulted in a documented conference summary,” without identifying the concerns. (Pl.’s Separate Statement [SROG] pp. 7:14–15.) Section 2030.220 requires factual specificity, not category labels, particularly where the underlying facts are exclusively within RCOE’s knowledge and control. (CCP § 2030.220(a).) RCOE’s opposition does not defend the “including but not limited to” formulation or the conclusory characterizations. Accordingly, **further responses to SROG Nos. 32 and 41 are ordered.**

b. SROG Nos. 52 through 57 (identical boilerplate objections)

RCOE responded to each of these six interrogatories with the same five objections, namely that the interrogatory (1) assumes facts not in evidence, (2) lacks foundation, (3) is vague and ambiguous, (4) is overbroad, and (5) is compound. (Pl.’s Separate Statement 9:23–29:18.) No substantive response was provided. (*Id.*) None of these objections are well taken.

First, “assumes facts not in evidence” and “lacks foundation” are trial evidentiary objections and do not properly lie against written discovery, where there is no evidentiary record before the court. (*West Pico Furniture Co. v. Sup. Ct.* (1961) 56 Cal.2d 407, 421.) The interrogatories do not assume that Plaintiff engaged in the identified conduct. They ask whether RCOE contends she did. If RCOE takes the position that it makes no such contention, the Code-compliant response is a substantive answer to that effect, not an objection. (CCP § 2030.220(a).)

Second, the vague and ambiguous objection is not sustained by any showing of what is vague. A responding party that objects must set forth the specific ground for the objection clearly in the response. (CCP § 2030.240(b).) The interrogatories use terminology drawn directly from RCOE’s own October 3, 2023 conference summary. (Pl.’s Mot. 10:27–11:2.) A party may not credibly plead confusion about terms it authored and used in its own employment documents. (*Deyo, supra*, 84 Cal.App.3d at 783.)

Third, the overbreadth objection is unsupported. Each interrogatory is limited to (1) a single category of conduct, (2) an approximately three-week window between October 3 and October 24, 2023, and (3) RCOE’s own contentions about Plaintiff’s performance. (Pl.’s Separate Statement [SROG] 12:7–13.)

Fourth, the compound objection lacks merit. The compound question rule should “apply only where *more than a single subject* is covered by the question,” so that “[q]uestions regarding the same subject” are permissible even if they include an “and” or “or.” (*Clement, supra*, 177 Cal.App.4th at 1291.) Each interrogatory poses a single question directed to a single subject, and the request for dates and descriptions merely defines the level of detail required, not multiple subjects. (Pl.’s Separate Statement [SROG] 12:11–13.)

Based on the foregoing, the Court **GRANTS** Plaintiff’s motion to compel further responses to SROG Nos. 32, 41, and 52 through 57. For Nos. 32 and 41, RCOE shall remove the “including but not limited to” qualifier and either confirm the lists are exhaustive or identify all additional deficiencies and reasons on which it relied, and shall replace conclusory characterizations with factual specifics. For Nos. 52 through 57, RCOE shall provide substantive responses identifying each instance it contends occurred during the three-week window or state under oath that it contends no such instances occurred.

## **2. Requests for Admission (Set One) Nos. 9–10**

Each answer to an RFA must be as complete and straightforward as the information reasonably available to the responding party permits. (CCP § 2033.220(a).) The response must admit so much of the matter as is true, deny so much as is untrue, or specify so much as to the truth of which the party lacks sufficient information or knowledge, and where lack of information is invoked the party must state under oath that a reasonable inquiry has been made and the information known or readily obtainable is insufficient to admit the matter. (CCP §§ 2033.220(b), (c).) A party may move to compel a further response where an answer to a particular request is evasive or incomplete or where an objection is without merit or too general. (CCP §§ 2033.290(a)(1), (2).) An answer must be responsive, and a party may not supply “deftly worded conclusionary answers designed to evade” the request or “deliberately misconstrue a question for the purpose of supplying an evasive answer.” (*Deyo, supra*, 84 Cal.App.3d at 783.)

Plaintiff moves to compel further responses to RFA Nos. 9 and 10. RFA No. 9 asks RCOE to admit that the February 13, 2024 EIAP (Bates Numbered 0291-0294) was the operative EIAP in effect when RCOE made the non-renewal decision. (Pl.’s Separate Statement [RFA] 3:4–6.) RFA No. 10 asks RCOE to admit that Plaintiff met all EIAP metrics as of the date of the non-renewal decision. (*Id.* at 5:11–12.)

### **a. RFA No. 9 (which EIAP version was operative)**

RCOE objected on the ground that “operative Employee Improvement Assistance Plan in effect” is vague and ambiguous and offered to respond if plaintiff would define the phrase. (Pl.’s Separate Statement [RFA] 3:13–15.) The objection is not sustainable. The request identifies the target document by title, date, and Bates range, and the terms “operative” and “in effect” are ordinary English readily understood in context. (*Id.* at 3:4–6.) A responding party may not claim vagueness about its own document. (*Deyo, supra*, 84 Cal.App.3d at 783.)

The identity of the operative EIAP is directly at issue because RCOE has advanced the EIAP as the basis for its non-renewal decision, and additional versions of the EIAP were generated both before and after the February 27, 2024 non-renewal letter. (Pl.’s Separate Statement [RFA] 3:28–4:7.) The information sought is exclusively within RCOE’s knowledge and control. (*Id.*) The

proper response is to admit, deny, or state under oath that after reasonable inquiry the information is insufficient to admit or deny. (CCP §§ 2033.220(b), (c).)

b. RFA No. 10 (whether Plaintiff met all EIAP metrics)

RCOE objected on vagueness, ambiguity, and overbreadth grounds and then supplied a narrative stating that the EIAP “require[s] an employee to demonstrate a pattern and practice of improvement rather than simply improvement in an area for a limited time” and that “[m]eeting a metric on one occasion does not demonstrate a pattern or practice of improvement.” (Pl.’s Separate Statement [RFA] 5:14–19.)

The objections are not sustainable. The EIAP metrics are RCOE’s own performance criteria, which RCOE defined, monitored, and evaluated against, and which RCOE has relied upon as the ground for non-renewal. (*Id.* at 6:19–25.) A party cannot credibly claim it does not understand its own evaluation criteria. (*Deyo, supra*, 84 Cal.App.3d at 783.) The temporal frame, being the date the non-renewal decision was made, forecloses the overbreadth objection. (Pl.’s Separate Statement [RFA] 6:25–27.)

The narrative that follows the objections is itself a substantive contention about how the EIAP should be interpreted and applied, and confirms that RCOE understood the request. (Pl.’s Reply 6:14–26.) Section 2033.220 does not permit a responding party to substitute an argumentative narrative for the required admission, denial, or verified statement of insufficient information. (CCP §§ 2033.220(b), (c); *Deyo, supra*, 84 Cal.App.3d at 783.) If RCOE contends plaintiff failed one or more metrics, it must deny the request. If it contends she met them all, it must admit. If it lacks sufficient information after a reasonable inquiry, it must so state under oath. (CCP §§ 2033.220(b), (c).)

Accordingly, the Court **GRANTS** Plaintiff’s motion to compel further responses to RFA Nos. 9 and 10. Each response shall admit, deny, or state under oath that after reasonable inquiry the information known or readily obtainable is insufficient to admit or deny.

**3. Form Interrogatories – Employment (Set Two) No. 217.1**

RCOE filed no memorandum of points and authorities in opposition to the FROG motion, only a separate statement. CRC Rule 3.1113(a) authorizes the Court to construe the absence of a required memorandum as an admission that the motion has merit. (CRC Rule 3.1113(a).) The merits are nonetheless addressed on the papers submitted.

FROGs are governed by the same rules as specially prepared interrogatories, and a party may move to compel a further response where an answer is evasive or incomplete or where an objection is without merit or too general. (CCP §§ 2030.300(a)(1), (3).) FROG No. 217.1 requires, for each RFA not unqualifiedly admitted, that the responding party state the number of the request, state all facts on which its response is based, identify all persons with knowledge of those facts, and identify all documents and tangible things supporting the response. (Pl.’s Separate Statement [FROG] 3:3–12.) Each answer must be as complete and straightforward as the information reasonably available to the responding party permits. (CCP § 2030.220(a).) Responses that are not tied to the individual request, or that merely reference the underlying RFA response, are not responsive. (*Deyo, supra*, 84 Cal.App.3d at 784.)

Plaintiff moves to compel a further response to FROG No. 217.1 as it relates to RFA Nos. 9 and 10. FROG No. 217.1 requires, as to each RFA that was not an unqualified admission, that RCOE state the number of the request, state the facts on which the response is based, identify persons with knowledge, and identify supporting documents and tangible things. (Pl.’s Separate Statement [FROG] 3:4–12.)

RCOE unqualifiedly admitted only one of the twelve RFAs. (*Id.* at 6:10–18.) For each remaining RFA, FROG No. 217.1 required a request-by-request statement of facts, witnesses, and documents. (*Id.*) RCOE instead grouped subparts (b) through (d) and copied its RFA responses into 217.1. (*Id.*) That approach does not tie specific facts to specific requests, does not identify which persons have knowledge of which facts, and does not identify documents or custodians on a request-by-request basis, and therefore does not satisfy FROG No. 217.1. (CCP § 2030.220(a); *Deyo, supra*, 84 Cal.App.3d at 784.)

As to RFA No. 9, RCOE copied its vagueness objection into 217.1 without providing any facts, witnesses, or documents. (Pl.’s Separate Statement [FROG] 5:11–14.) For the reasons set forth above, that objection is not sustainable, and FROG No. 217.1 requires a substantive request-by-request disclosure.

As to RFA No. 10, RCOE copied its objections and its “pattern and practice of improvement” narrative into FROG No. 217.1, again with no supporting facts, witnesses, or documents. (*Id.* at 5:15–21.) Where a responding party affirmatively asserts, as RCOE does here, that a plaintiff failed to demonstrate a pattern of improvement, Form No. 217.1 requires the party to identify the metric or metrics she is said to have missed, the facts supporting that contention, the persons with knowledge, and the documents evidencing those facts. (CCP § 2030.220(a).)

The information sought bears directly on the central issues in this action, including whether RCOE’s stated performance based reasons for non-renewal were genuine or pretextual and whether RCOE possessed any factual basis for its conclusion that plaintiff was not meeting expectations. (Pl.’s Separate Statement [FROG] 6:3–8.)

Accordingly, the Court **GRANTS** Plaintiff’s motion to compel further response to FROG No. 217.1 as to RFA Nos. 9 and 10. RCOE shall serve further response without objection that separately addresses subparts (b), (c), and (d) for each non-admitted RFA.

#### 4. Consolidated Monetary Sanctions

Plaintiff requests monetary sanctions on each of the three motions, totaling \$10,400.00.

| <b>Motion</b>         | <b>Hours</b> | <b>Rate</b> | <b>Requested</b> |
|-----------------------|--------------|-------------|------------------|
| <b>SROG (Set Two)</b> | 6.0          | \$650       | \$3,900.00       |
| <b>RFA (Set One)</b>  | 5.0          | \$650       | \$3,250.00       |
| <b>FROG (Set Two)</b> | 5.0          | \$650       | \$3,250.00       |
| <b>Total</b>          | 16.0         |             | \$10,400.00      |

RCOE cross-requests \$2,030.00 in sanctions against Plaintiff on the SROG motion, based on 7 hours at \$290.00 per hour.

Sanctions are mandatory against the party who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or requests for admission, unless the Court finds substantial justification or other circumstances that would make the award unjust. (CCP §§ 2030.300(d), 2033.290(d).) Making an unmeritorious objection or an evasive response is a misuse of the discovery process, and the Court may order the offending party to pay the reasonable expenses, including attorney's fees, incurred as a result. (CCP §§ 2023.010(e), (f), 2023.030(a).)

RCOE is the unsuccessful party. As discussed above, RCOE's responses to SROG Nos. 32, 41, and 52 through 57, RFA Nos. 9 and 10, and FROG No. 217.1 are not Code-compliant. RCOE offered no substantial justification for its responses to SROGs, and no memorandum at all on FROG. On the RFA, RCOE invoked substantial justification under sections 2033.290(d) and 2023.010(h), (i), arguing its objections were Code-compliant and that it offered to supplement upon clarification. That argument fails for the reasons stated in the merits analysis above. The terms "operative," "in effect," and "metrics" are RCOE's own EIAP terminology, and RCOE's willingness to supplement upon clarification does not create substantial justification for objections that lacked merit in the first instance. No other circumstance makes an award unjust.

Although the three motions are procedurally distinct, they share a common factual background, a single meet and confer record, and substantially overlapping legal authorities. The RFA motion and the FROG motion are particularly intertwined, because FROG No. 217.1 exists only as a follow-on to RFA Nos. 9 and 10 and turns on the same underlying dispute. The Court therefore reduces the awards accordingly.

- SROGs - **\$3,900.00** for six (6) hours at \$650 per hour.
- RFA – Reduced amount of **\$2,600.00**, representing four (4) hours at \$650.00 per hour.
- FROG – Reduced to **\$1,300.00**, representing two (2) hours at \$650.00 per hour.

The Court therefore **GRANTS** Plaintiff's requests for monetary sanctions in the reduced total amount of **\$7,800.00** against RCOE and its counsel, and **DENIES** RCOE's cross-request for \$2,030.00.

**Summary:** **GRANT** Plaintiff's Request for Monetary Sanctions in the reduced amount of \$7,800.00 ordered payable within 30 days of this order. **DENY** Defendant RCOE's Cross-Request for Monetary Sanctions. **GRANT** Plaintiff's three Motions to Compel Further Responses to Special Interrogatories (Set Two) Nos. 32, 41, 52–57, Requests for Admissions (Set One) Nos. 9–10, and Form Interrogatories – Employment (Set Two) No. 217.1.

**3.**

| CASE #      | CASE NAME              | HEARING NAME                                       |
|-------------|------------------------|----------------------------------------------------|
| CVRI2500875 | FARLEY-HAY vs FLANIGAN | MOTION FOR SUMMARY ADJUDICATION ON CROSS-COMPLAINT |

**Tentative Ruling:**

Moving party: Plaintiff / Cross-Defendant Charissa Farley-Hay  
Responding party: Defendants / Cross-Complainants Christi Flanigan et al.

On 2/13/2025, Plaintiff Charissa Farley-Hay initiated this lawsuit against Defendants Christi Flanigan (“Flanigan”) and Flanigan’s company, Flanigan Stone Company (“FSC”). Plaintiff alleges on 12/22/2021, FSC, as borrower, executed a written promissory note (the “Promissory Note”) in the principal amount of \$200,000, in favor of Plaintiff. Flanigan executed a personal guarantee (the “Guaranty”) of the Promissory Note. As of the maturity date, 3/1/2024, Defendants have made no payments to reduce the principal amount. On 5/4/2023, Defendants acknowledged owing Plaintiff (the “Debt Acknowledgment”) the balance of \$825,629.47 as of 12/31/2023 (the “Balance Debt”). The operative Complaints asserts 3 causes of action: (1) Account Stated, (2) Breach of Promissory Note, and (3) Breach of Guaranty.

**Cross-Complaint & Allegations.** On 5/16/2025, Defendants/Cross-Complainants filed a Cross-Complaint against Plaintiff and Hector Gonzalez (“Gonzalez”) (collectively, Cross-Defendants). Cross-Complainants allege Cross-Defendants, along with Shon Farley (collectively, “Sellers”), owned Farley Paving Stone Co. (the “Farley Paving”). In 2021, Sellers agreed to sell their interest in Farley Paving. On 12/22/2021, Sellers and FSC entered into a stock purchase agreement (the “Agreement”), wherein FSC agreed to pay the purchase price of \$2,000,000, which consisted of \$400,000 in cash to non-party Shon Farley; \$198,424 in cash to Gonzalez; \$1,201,576 in cash to Plaintiff; and the \$200,000 Promissory Note. FSC paid Plaintiff \$200,000 in connection with the working capital calculation, made payments on behalf of Sellers for obligations that accrued pre-closing, and paid expenses made by Sellers that continued to be erroneously charged to Farley Paving. FSC’s own accountant determined FSC had overpaid Sellers for Farley Paving’s working capital. FSC unsuccessfully addressed this overpayment with the Sellers. It is also alleged Sellers violated the Agreement by engaging in direct competition business against Farley Paving.

The Cross-Complaint asserts causes of action for: (1) Breach of Written Agreement against Sellers, (2) Breach of Oral Contract against Plaintiff, (3) Money Had and Received against Plaintiff, (4) Declaratory Relief against Plaintiff, and (5) Defamation against Plaintiff.

Trial is currently set on January 8, 2027.

**Motion for Summary Adjudication (“MSA”).** Cross Defendants now move for summary adjudication as to the first four causes of action in the Cross Complaint. Cross Defendants argue FSC lacks the capacity to assert affirmative cross claims in this Action because it was completely dissolved and wound up prior to the commencement of this Action.

In opposition, Cross Complainants, citing Corporation Code section 2010, argues a dissolved corporation continues to exist for the purpose of winding up its affairs, including prosecuting and defending actions by or against it. Cross Complainants argue whether FSC’s winding up is complete and whether its cross claims are assets that remain to be collected presents triable issues that preclude summary adjudication.

In reply, Cross Defendants generally repeat their arguments in moving papers.

### **Analysis**

## I. Evidentiary Issues / Objections

The Court **SUSTAINS** Cross Complainants' objection #1.

As to Exhibits 1-8 for which Cross Defendants' request judicial notice ("RJN") for, Cross Complainants do not object and do not dispute Cross Defendants' undisputed facts ("UF") that these Exhibits support. Accordingly, the Court **GRANTS** RJN as to Exhibits 1-8.

As to Cross Defendants' objections, some attack multiple sentences, some of which are admissible and others inadmissible. It is the burden on the party making the objection to state the exact portion of the evidence to be stricken, "especially where only part of it is objectionable." (*OCFCD v. Sunny Crest Dairy, Inc.* (1978) 77 Cal.App.3d 742, 753; cf. *Rose v. State of California* (1941) 19 Cal.2d 713, 742 ["A motion to strike out inadmissible evidence may be properly denied where it is general and embraces evidence which is admissible as well as that which is inadmissible."].) With these principles in mind, the Court **OVERRULES** objections #1-8.

## II. Legal Standard

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.) "Summary adjudication motions are procedurally identical to summary judgment motions." (*Serri v. Santa Clara Univ.* (2014) 226 Cal.App.4th 830, 859.)

A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

## III. Merits

Both parties cite *Penasquitos, Inc. v. Superior Court* (1991) 53 Cal.3d 1180, 1884-1185 and Corporation Code section 2010 to argue their respective positions.

Cross Defendants move for summary adjudication on the grounds FSC does not exist and has no capacity or standing to prosecute any cross claims in this action because FSC is completely devoid of any assets, debts, and liabilities and has nothing to wind up. Cross Defendants move for an order dismissing all such crossclaims with prejudice. Cross Defendant also reference *Mongols Nation Motorcycle Club, Inc. v. City of Lancaster* (2012) 208 Cal.App.4th 124, but this is a depublished case and cannot be cited or relied on by courts or parties. (Cal. Rules of Court, rule 8.1115.)

Cross Complainants argue a dissolved corporation continues to exist to wind up its affairs, including prosecuting and defending actions by or against it. Cross Complainants argue that whether FSC's winding up is complete and whether its cross claims are assets that remain to be collected presents triable issues of fact.

The lack of capacity to sue is simply a legal disability, such as a minority or incompetency that "deprives a party of the right to come into court." (*Rubinstein v. Fakheri* (2020) 49 Cal.App.5th 797, 806.) "There is a difference between the capacity to sue, which is the right to come into court, and the standing to sue, which is the right to relief in court." (*Friendly Village Community Assn., Inc. v. Silva & Hill Constr. Co.* (1973) 31 Cal.App.3d 220, 224.) Standing to sue goes to the existence of a cause of action. (*Troyk v. Farms Group, Inc.* (2009)

An action does not abate due to the dissolution of the corporation. (Corp. Code, § 2010, subd. (b).) A corporation remains liable to the extent of its undistributed assets, including available insurance. (Corp. Code, §§ 2010, subd. (a) ["A corporation which is dissolved nevertheless continues to exist for the purpose of winding up its affairs, prosecuting and defending actions by or against it and enabling it to collect and discharge obligations, dispose of and convey its property and collect and divide its assets, but not for the purpose of continuing business except so far as necessary for the winding up thereof."], 2011, subd. (a)(1)(A).)

*Penasquitos, Inc.* is instructive regarding corporate dissolutions. In *Penasquitos, Inc.*, *supra*, 53 Cal.3d 1180, the California Supreme Court allowed homeowners to bring suit for construction defects against defendants after defendants completed statutory dissolution. (*Id.* at 1183.) "[T]he effect of dissolution is not so much a change in the corporation's status as a change in its permitted scope of activity." (*Id.* at 1190.) Dissolution is a retirement from active business and not a death of the corporation. (*Id.*) Lawsuits can be pursued against dissolved corporations for predissolution activities. (*Id.* at 1190.) "Participating in a judicial resolution of such claims is part of the winding-up process." (*Id.*) The court explained that a corporation shall continue to exist for an indefinite period after dissolution as a legal entity for the purpose of winding up its affairs. (*Id.* at 1185, citing Civ. Code, § 1905, subd. (b).)

As the California Supreme Court aptly noted:

Once the corporation's assets have been properly distributed to the shareholders, the assets are beyond the reach of plaintiffs who possess claims that arose after dissolution. [Citations.] This means that bringing suit against a dissolved corporation on a postdissolution claim will often be a pointless exercise, because



the corporation will have no assets with which to satisfy a judgment against it. When a dissolved corporation lacks the means to satisfy a monetary judgment, there is no need to erect legal barriers to protect it from litigation (assuming such barriers were otherwise desirable), because plaintiffs are unlikely to incur the cost of litigation with no hope of recovery.

Plaintiffs will be likely to assert postdissolution causes of action only if there is a prospect of recovery from the dissolved corporation's liability insurance, from undistributed assets, or from assets of the corporation discovered after dissolution. If corporate assets are undistributed or discovered after dissolution, the winding-up process has not been completed; the interest in finality and repose cannot justify barring a postdissolution claim so long as the corporation holds undistributed assets. Similarly, if the corporation has liability insurance coverage, its dissolution provides no reason to excuse the insurer from defending the action and indemnifying those injured by the predissolution activities of its insured, just as a corporation's insolvency or bankruptcy does not release its insurer from payment for damages the corporation has caused.

(*Penasquitos, Inc.*, *supra*, 53 Cal.1.3d at 1191-1192.)

Here, it is undisputed FSC is a completely wound up and dissolved corporation with no assets and no insurance. (UF #2-3.) It is also undisputed that to date, FSC has not filed any Certificate of Revocation of Election to Terminate, and Cross-Complainant has not revoked the dissolution. (UF #5.) Thus, Cross Defendants meet their initial burden of persuasion. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar, supra*, 25 Cal.4th at 855.) The burden shifts to Cross Complainants.

Cross Complainant Flanigan submits a declaration wherein she testifies that FSC was formed to acquire Farley Paving. (Flanigan Decl., ¶2.) Flanigan and her ex husband owned FSC. (*Ibid.*) On December 22, 2021, Flanigan entered into and signed the Agreement with Sellers to purchase Farley Paving. (*Id.* at ¶4; Exh. A.) Under the Agreement, FSC agreed to pay a purchase price of \$2,000,000, which included cash payments to the Sellers at closing, \$200,000 of which was payable through a promissory note (the "Note"). (*Id.* at ¶5.) Flanigan understood the balance of the Note could be offset by payments FSC made to cover Farley Paving's liabilities that predated the closing. (*Ibid.*; Exh. A.) Sellers and FSC verbally agreed that, after the transaction closed, Farley Paving's working capital would be calculated, which could result in an adjustment to the purchase price. (*Id.* at ¶6.) FSC paid Farley-Hay \$200,000 towards the working capital adjustment between March 31, 2022 and September 26, 2022 and paid at least \$174,300.25 in the Company's pre-closing liabilities. (*Id.* at ¶7.) Farley-Hay withdrew approximately \$55,000 from Farley Paving's bank accounts, which was not part of the purchase price. (*Ibid.*) Flanigan testified FSC overpaid the Sellers on the working capital adjustment and is entitled to recover the excess. (*Id.* at ¶8.) The parties' dispute over the working capital adjustment has never been resolved and remain owing to FSC. (*Id.* at ¶9.) FSC filed a certificate of dissolution on August 24, 2024.

Cross Complainant's testimony is evidence that the working capital dispute was in existence before dissolution. Accordingly, FSC's cross claims seek to collect the sums owed to it under the Agreement and to offset the balance of the Note. Lawsuits can be pursued against

dissolved corporations for predissolution activities. (*Penasquitos, supra*, 53 Cal.3d at 1190.) “Participating in a judicial resolution of such claims is part of the winding-up process.” (*Id.*)

Accordingly, Cross Complainants meet their burden of presenting a triable issue of material fact. The Court **DENIES** the motion.

#### **IV. Sanctions**

Cross Complainants asserts Cross Defendants’ motion improperly relies on a depublished opinion that must not be cited or relied upon, and the Court should disregard it and consider sanctions.

As previously discussed, Cross Defendants reference *Mongols Nation Motorcycle Club, Inc., supra*, 208 Cal.App.4th 124, but this is a depublished case and cannot be cited or relied on by courts or parties. (Cal. Rules of Court, rule 8.1115.) However, Cross Defendants acknowledge the depublished case cannot be cited or relied on. (Opp., pg. 9:3-4.)

The Court **DECLINES** to rule on sanctions as Cross Complainants provide no statutory basis to impose sanctions

#### **4.**

| <b>CASE #</b> | <b>CASE NAME</b> | <b>HEARING NAME</b>                 |
|---------------|------------------|-------------------------------------|
| CVRI2502151   | LATHAM vs BLANCO | MOTION TO VACATE ORDER OF DISMISSAL |

#### **Tentative Ruling:**

Under CCP §473(b), the court is required to vacate any default or dismissal “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.”

#### **1. Mistake, Inadvertence, Surprise or Neglect**

The grounds for relief under the discretionary and mandatory provisions of CCP §473(b) are identical (“mistake, inadvertence, surprise”) except for one distinction: whereas only “excusable” neglect is a basis for relief under the discretionary provision, any neglect is a basis for relief under the mandatory provision. Thus, where an attorney affidavit of fault is filed, relief must be granted even where the default results from inexcusable neglect by the defendant’s attorney. *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 CA4th 868, 897, 102 CR3d 140, 163.

Pursuant to the Court’s reading of the declaration of counsel, Gavril Gabriel, the Court is satisfied that the dismissal was due to the neglect of counsel. Accordingly, the motion to set aside the 2/20/2026 dismissal is granted.

The Court sets the matter for a Case Management Conference on 10/27/2026 at 8:30 a.m. in Department 6. The Court set the matter for an OSC as to why sanctions of up to \$1,500 or a

dismissal should not be imposed for Plaintiff's failure to timely file proof of service on all defendants (CRC 3.110.(b)&(f)) on 10/27/2026 at 8:30 a.m..

Moving party to give notice of ruling and of the CMC.

**5.**

| CASE #      | CASE NAME                              | HEARING NAME               |
|-------------|----------------------------------------|----------------------------|
| CVRI2602204 | LUSCA vs HILLTOP<br>GEOTECHNICAL, INC. | MOTION TO STRIKE COMPLAINT |

**Tentative Ruling:**

Moving party: Defendant Hilltop Geotechnical, Inc.

Responding party: Plaintiff Lorenzo Lusca

Plaintiff Lorenzo Lusca ("Plaintiff") alleges that Defendant Hilltop Geotechnical, Inc. ("Defendant" or "Hilltop") employed him as a residential inspector on residential development projects from 11/20/23 until 6/20/25. Plaintiff inspected ground-up residential construction including retaining walls and plumbing to ensure compliance with Riverside County Codes, Municipal Codes, and California Building Codes. Plaintiff alleges that Area Manager Jason Baechel repeatedly directed him to approve non-compliant work that Plaintiff believed violated governing codes and implicated life-safety concerns. Plaintiff further alleges Defendant's agents/supervisors instructed him to "stop looking" for violations, "be easy" with corrections, to "pass" homes, and "choose [his] battles."

Plaintiff also alleges that on 12/16/24, he notified his supervisor Michael Carrillo and Human Resources that he intended to take leave for the expected birth of his child. He submitted to HR a formal request for leave on 1/9/25. Defendant allegedly reduced his assigned hours on 1/15/25, canceled his benefits during his leave, and terminated him on 6/20/25.

The operative Complaint, filed 4/10/26, asserts: (1) associational disability discrimination (FEHA); (2) associational pregnancy discrimination (FEHA); (3) failure to prevent discrimination (FEHA); (4) failure to accommodate (FEHA); (5) failure to engage in the interactive process (FEHA); (6) retaliation (FEHA); (7) retaliation (CFRA); (8) interference (CFRA); (9) retaliation (FMLA); (10) interference (FMLA); (11) Labor Code §1102.5; (12) meal-period violations; (13) rest-period violations; (14) waiting-time penalties; (15) inaccurate wage statements; (16) unfair business practices; and (17) wrongful termination (public policy).

Now, Defendant moves to strike paragraphs 46, 54, 63, 74, 75, 83, 84, 94, 95, 105, 115, 124, 133, 140, 141, and 165, together with Prayer No. 9 for punitive and exemplary damages. It argues that the pleading fails to allege oppression, fraud, or malice, and therefore fails to plead facts supporting punitive damages. Defendant also argues that Plaintiff does not allege facts showing that an officer, director, or managing agent had advance knowledge of the unfitness of its staff or authorized/ratified the alleged conduct.

In opposition, Plaintiff argues that Defendant improperly converts the clear-and-convincing evidentiary burden that applies at trial into a heightened pleading requirement. Plaintiff contends that Defendant's alleged pressure to approve the non-compliant work, to

disregard life-safety violations, followed by reduced hours, cancellation of benefits, and termination after requesting accommodation and engaging in protected activity, supports an inference of retaliation and conscious disregard. Plaintiff also asserts that the motion is overbroad because the 16 challenged paragraphs contain allegations relevant to Defendant's policy knowledge, retaliatory motive, authorization, ratification, and pattern-and-practice evidence relevant to the underlying causes of action.

In reply, Defendant repeats its arguments from the moving papers.

### **Analysis**

#### ***Meet and Confer***

CCP § 435.5 requires a meet and confer process via *phone, videoconferencing, or in person* at least five (5) days before filing a motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (Code Civ. Proc., §§ 430.41(a)(1), 435.5(a)(1).) Defense counsel declares that the parties met and conferred telephonically on 6/8/26. (Francisco Decl., ¶ 2.) Defendant complied.

#### ***Motion to Strike***

A motion to strike may remove irrelevant, false, or improper matter. (Code Civ. Proc., § 436.) The court reads the complaint as a whole and assumes the pled facts are true. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) A plaintiff must plead ultimate facts showing entitlement to such relief. (*Id.*)

#### ***Malice or oppression***

In order to plead punitive damages, a plaintiff must plead allegations of fraud, malice, or oppression with sufficient particularity. (*Hilliard v. AH Robbins Co.* (1983) 148 Cal.App.3d 374, 392.)

Malice is currently defined in the statute as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294(c)(1).) Oppression is defined as “despicable conduct that subjects to a cruel and unjust hardship in conscious disregard of that person's rights. (Civ. Code § 3294(c)(2).) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294(c)(3).)

Here, the Complaint sufficiently alleges conduct that could support malice or oppression. The complaint alleges that Defendant's Area Manager repeatedly directed Plaintiff to approve non-compliant construction that Plaintiff identified as involving life-safety issues. (Compl., ¶ 14.) Specifically, it alleges that Defendant “pressured Plaintiff to disregard building codes and approve plans with non-compliant electrical work,” “discouraged Plaintiff from reporting homes that were not up to code,” “instructed Plaintiff to ‘stop looking’ for violations of the code,” “disapproved of

Plaintiff's corrections on inspection reports," and took adverse actions including and up to terminating him after he requested protected family leave and reporting violations. (*Id.*, ¶¶ 14-15, 18-28.)

Taken as true, retaliating against an employee for reporting safety violations and exercising protected leave rights could constitute despicable conduct and conscious disregard of that employee's rights. At this stage, the Complaint need only allege ultimate facts that could support the remedy when accepted as true.

### ***Corporate liability***

Civil Code §3294 allows a plaintiff to seek punitive damages, but that a corporate employer is not liable unless the action was taken by an officer, director or managing agent. A managing agent who has the ability to hire and fire employees does not render a supervisory employee a managing agent. (*White v. Ultramar* (1999) 21 Cal.4th 563, 575.) Instead, a managing agent is a corporate employee who exercises "substantial independent authority and judgment in their corporate decision making so that their decisions ultimately determine corporate policy. (*Id.* at 566-567.) "The scope of a corporate employee's discretion and authority under our test is therefore a question of fact for decision on a case-by-case basis." (*Id.* at 567.) "The managing agent must be someone who exercises substantial discretionary authority over decisions that ultimately determine corporate policy." (*Id.* at 573.)

The real issue here is whether a managing agent was involved. The complaint identifies Baechel as an "Area Manager" (Compl., ¶ 14) and Carrillo as a "supervisor" (*id.*, ¶ 15). However, it alleges no facts describing their authority to formulate or determine Defendant's corporate policies. It also does not identify the person who reduced Plaintiff's hours, canceled his benefits, or made the termination decision. The challenged paragraphs only generally allege that unspecified "managers," "officers," and "managing agents" authorized or ratified the misconduct. (Compl., ¶¶ 46, 54, 63, 74-75, 83-84, 94-95, 105, 115, 124, 133.) They do not allege who exercised corporate-policy authority or what that authority was. As such, the Complaint does not sufficiently plead corporate responsibility under Civ. Code §3294(b).

Nonetheless, the challenged paragraphs contain other facts and allegations supporting Plaintiff's claims. Those matters may remain relevant even if the complaint presently fails to allege corporate liability. Accordingly, the Court does not strike the paragraphs in their entirety. The Court strikes only the portions expressly requesting punitive damages.

### **Summary**

Grant the motion to strike prayer no. 9 and only the portions of the challenged paragraphs expressly seeking punitive or exemplary damages (para. 46, 54, 63, 74, 75, 83, 84, 94, 95, 105, 115, 124, 133, 140, 141, and 165.) Allow 30 days' leave to amend.